

SERVICES AGREEMENT

This Agreement is made between Fabrikam Inc ("Customer") and Contoso Services LLC ("Provider").

1. SERVICES. Provider shall supply the managed services described in the applicable Statement of Work.
2. FEES AND PAYMENT. Customer shall pay each undisputed invoice within sixty (60) days of invoice receipt.
3. LIMITATION OF LIABILITY. Each party's aggregate liability under this Agreement shall not exceed the total fees paid or payable under the applicable Statement of Work.
4. INDEMNIFICATION. Each party shall indemnify the other solely for third-party claims arising from its gross negligence, willful misconduct, or infringement of intellectual property under this Agreement.
5. TERMINATION. Provider may terminate this Agreement immediately and without notice, and no payment shall be due for work in progress.
6. INTELLECTUAL PROPERTY. Customer owns the deliverables created specifically for this engagement. Provider retains ownership of its pre-existing intellectual property, reusable tools and methodologies.
7. CONFIDENTIALITY. Each party shall protect the other party's proprietary information using no less than reasonable care.
8. GOVERNING LAW. This Agreement is governed by the laws of England and Wales.